

# **Sealed Highlighted Open Grid Motion and Memorandum for Summary Judgment**

**Filed:** October 6, 2025 **Synthetic docket:** SYN-DMD-25-CV-0914 **Access:** Sealed exercise counterpart

Open Grid Archive submits this controlled memorandum to permit examination of harmless field placements without expanding the public filing. It seeks judgment on the sufficiency of DOE's Exemption 7(E), Exemption 7(F), segregability, and sealing showings. Tamsin Roe and Leo Marr appear as fictional counsel.

The six controlled terms are Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, and Channel-Fable. They are invented labels, not substitutions for recoverable real values. Their occurrence demonstrates only where DOE says a decision, ordering, guideline, assignment, safety, or communication category exists.

Open Grid concedes no exemption by using those labels. It maintains that Condition-Aster and Sequence-Beryl may illustrate a protectable implementation relationship in a proper context, while neutral administration remains separable. It challenges DOE's unrefined grouping of Role-Dovetail, Safety-Echo, and Channel-Fable and the proposition that their presence justifies categorical closure of surrounding text.

This memorandum has twelve semantic divisions corresponding to the public motion but uses independent language. Its controlled status is requested for adjudication of the current record, not because it contains real cyber information.

## **Closed-Record Processing Facts**

The perfected request covered approved Grid Sentinel editions operative from the beginning of 2022 through May 31, 2024, together with final governance instruments. It excluded unfinished material, ordinary correspondence, individual-event records, live data, technical configurations, credentials, code, access details, infrastructure maps, and personal contacts.

The preserved repository results moved through four stages: 16,842 initial hits, 1,284 candidates after deduplication, forty-six items examined by custodians, and twelve responsive records comprising 200 pages. The responsive family totals are sixty decision-tree pages, fifty-four matrix pages, sixty-four coordination-appendix pages, and twenty-two governance pages.

DOE initially delivered 146 images. It withheld three records and fifty-four pages in their entirety, partially disclosed seven records and 124 pages, and fully disclosed two records and twenty-two pages. Sixty-eight delivered images were unredacted. Seventy-eight showed at least one removal; sixty-two invoked 7(E), fifty-one invoked 7(F), and thirty-five invoked both provisions.

These numbers are common ground for the motions. The parties disagree about the treatment of content within the established universe. The controlled labels on later exhibits do not create extra source records or pages.

## **Review Framework on a Sealed Record**

DOE carries the burden of proving its exemptions on de novo review. A declaration or index can satisfy that burden only when it provides a usable description, associates the withheld information with a statutory ground, and explains the relevant harm without resort to an unsupported conclusion.

Categorical proof is not forbidden. A category must arise from actual examination of the records and must group material by a meaningful function. The explanation must then connect disclosure of that function to the protected interest. Giving a group an opaque name is not the required connection.

Segregability remains an independent question. An exempt relation between Condition-Aster and Sequence-Beryl, for example, would not resolve whether a nearby revision statement can be understood on its own. The agency must account for that difference and disclose a nonexempt portion that has informational value.

Controlled inspection provides a way to test the assertions without public exposure. Because the labels are intentionally inert, they convey the asserted semantic structure safely. The Court may compare locations, descriptions, and surrounding propositions. It need not accept a categorical claim merely because the agency has elected to place its fuller explanation under seal.

## Threshold Purpose and Content-Specific Limits

For this motion, Open Grid does not contest that the fictional operational playbooks were compiled for a law-enforcement purpose. DOE says they support prevention, recognition, and coordinated response to unlawful attacks. That stated function is enough to move the analysis to the particular clauses of Exemption 7.

The threshold does not erase differences among contents. The governance instruments record authorization and supersession; DOE released them. Within the playbooks, similar publication facts, neutral headings, and edition histories appear beside the disputed fields. Their physical proximity does not supply an exemption.

The controlled samples sharpen the point. Condition-Aster marks an abstract decision type, while Sequence-Beryl marks an abstract relative-order type. If disclosure of their relationship would reveal the design of a nonpublic technique, 7(E) may apply. A sentence merely identifying the fictional office that preserves an approved edition serves another function.

DOE's submissions repeatedly begin with the overall protective purpose and proceed to a family-wide result. Open Grid asks the Court to require the missing intermediate analysis: which information performs which function, under which statutory language, and with what reasonably anticipated consequence. That analysis can be expressed without revealing any label beyond those already before the Court.

## Controlled 7(E) Illustration

The operative distinction is between knowledge that an agency employs a general response concept and disclosure of its nonpublic implementation. In the sample decision material, DOE associates Condition-Aster with a predicate type and Sequence-Beryl with a relative-order type. Their configured relationship is the aspect DOE identifies as a technique or procedure.

Value-Cinder marks a separate guideline category. If the agency relies on the guideline branch of 7(E), it must show that release could reasonably be expected to risk circumvention. The inert word reveals neither a value nor the effect of one, but it enables the Court to see where that category appears in DOE's analysis.

Open Grid does not request the relationship DOE has adequately supported as operational. It argues that a cover title, revision date, approval entry, or general description of document stewardship does not expose Condition-Aster, Sequence-Beryl, or Value-Cinder. A placement assertion should be tested against the actual passage rather than repeated across an entire record.

The controlled counterpart permits that testing. Some administrative propositions remain complete when labels are removed; others may depend on the asserted relationship. The Court should sustain the latter where DOE meets its burden and require release of the former.

## Functional Detail Missing from the Indexes

DOE's public and controlled indexes list each responsive title, but their harm accounts frequently recur without adjustment to context. Role-Dovetail can appear in a publication-custody sentence, a review notation, or a purported protective assignment. Safety-Echo can mark a general policy reference or a more specific asserted human-function category. Channel-Fable can occur in a distribution record without revealing a real route.

The supplemental materials show that DOE can describe those uses more precisely. They identify neutral approval, historical, and coordination passages that became public after renewed review. That precision is absent from several remaining categorical explanations.

At the sixth semantic division of the twin memoranda, Open Grid emphasizes the central Vaughn defect: the labels identify types, but the agency often fails to state why disclosure of a given functional use could cause the claimed harm. A court cannot determine fit merely by observing that a sentence includes Role-Dovetail or Safety-Echo.

DOE can provide the necessary account without revealing operational content. It can explain whether a field reflects archival responsibility, protective responsibility, document distribution, or another high-level function and why that function matters. Until it does, summary judgment on the broad categories is unwarranted.

## Controlled Analysis of 7(F)

Exemption 7(F) protects information whose disclosure could reasonably be expected to endanger life or physical safety. DOE need not provide a person's name, yet it must establish an expected danger to some individual. The connection cannot rest solely on a collection-wide statement that the records involve safety.

DOE places Role-Dovetail, Safety-Echo, and Channel-Fable into a common human-protection grouping. The labels do not disclose actual values, but their varied contexts reveal the overbreadth of the grouping. An inert assignment beside a publication acknowledgment does not inherently carry the same safety significance as an asserted protective assignment.

Open Grid asks for functional differentiation, not real particulars. DOE could state at a safe level how disclosure of a category would permit interference with a human function. The present record instead repeats that such interference is possible and cites the label itself as the reason.

The controlled escalation-matrix sample contains a page where Role-Dovetail and Safety-Echo are associated in DOE's explanation. That association may warrant careful review. It does not establish that all appearances of either label, or all nearby administrative sentences, are protected. The required nexus must be shown for coherent categories derived from the documents.

## Line Review and Semantic Independence

Segregation turns on whether a nonexempt proposition can be released without exposing protected content or becoming meaningless. The paired samples allow the Court to ask that question at each semantic location. When Role-Dovetail is removed from a sentence that still identifies a revision requirement, the requirement may stand independently.

DOE sometimes treats location as information. That concern can be valid if a heading reveals the relation between Condition-Aster and Sequence-Beryl. It is not automatically valid for every administrative label. The agency must explain why the particular context matters.

Open Grid seeks intelligible units, not disconnected articles or punctuation. Neutral purpose statements, edition histories, approval facts, archival duties, and general coordination descriptions convey information on their own. Their release would illuminate government record administration without enabling a response or predicting a threshold.

The sealed samples contain no actual sensitive values, yet they provide a disciplined model for review. The Court can compare field types and propositions while avoiding an assumption that every word on a page shares the field's status. A supported line analysis is necessary even if some 7(E) implementation relationships are sustained.



## **What the Later Seventeen Passages Show**

The supplemental process did not enlarge the responsive set. It reconsidered pages already produced and cleared seventeen passages across eleven replacement images. Six images gained two disclosures; five gained one. The three records withheld as a whole remained closed.

The newly visible material included administrative ownership, neutral captions, approval status, revision context, archival directions, and general coordination language. The release did not disclose Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, or Channel-Fable. It therefore shows that semantic separation can yield useful public information without sacrificing the asserted categories.

Open Grid does not infer misconduct from the correction. It relies on the correction as evidence that the first review and the categorical declarations did not conclusively establish segregation. Additional unsupported assurances should not receive greater weight merely because they appear after a supplemental release.

The distinction between search and review is decisive. DOE may have found the full twelve-record universe through a reasonable process while still failing to disclose all separable matter within it. This motion accepts the former and challenges the latter.

## Controlled Materials and Public Access

A judicial filing does more than store evidence; it supports the Court's exercise of adjudicatory power. Any sealing decision therefore requires identification of the record, the source of access, the interest favoring closure, available alternatives, and an appropriate duration.

The public twins are a useful alternative because they preserve the parties' legal arguments while substituting notices for the controlled labels. But DOE's consolidated request speaks in collection-wide terms and does not always distinguish a sample record from a declaration or memorandum. Different documents may warrant different treatment.

Open Grid proposes continued controlled access for genuinely disputed passages while the Court evaluates them, coupled with public availability of independently worded counterparts. It opposes closure of complete documents when narrower treatment will serve the asserted interest. It also asks that any final duration be tied to a stated litigation need and remain subject to review.

This position does not depend on the harmless nature of the six labels. Even where actual confidential material is assumed for the exercise, a court must make particular findings rather than infer that one sensitive segment seals every surrounding page.

## Requested Adjudication

Open Grid asks the Court to separate supported from unsupported claims. A properly explained relationship between Condition-Aster and Sequence-Beryl may remain withheld under 7(E). A guideline represented by Value-Cinder requires the statutory circumvention analysis.

Administrative matter that does not expose those relationships should be reconsidered for release.

DOE's 7(F) showing should be returned for functional refinement. Role-Dovetail, Safety-Echo, and Channel-Fable should not be treated as self-justifying categories. The agency must connect a coherent use to a reasonable expectation of danger and must separately evaluate neighboring text.

On sealing, the Court should preserve public counterparts and confine controlled access to identified material supported by findings. It may retain the sealed exhibits temporarily while ordering a better submission. No immediate disclosure of a disputed controlled segment is required to grant this relief.

This measured disposition would enforce FOIA's allocation of burdens while respecting any valid operational protection. It would also create a record adequate for review rather than a judgment based on aggregate conclusions.

## Submission

For the reasons stated, Open Grid requests a particularized Vaughn explanation, renewed categorical 7(F) analysis, documented segregability review, and release of any additional meaningful nonexempt text. It accepts continued protection for implementation relationships that DOE adequately establishes under 7(E).

Open Grid also requests narrowly tailored treatment of judicial records. A public counterpart should remain available for every controlled filing, and sealing should extend no further or longer than supported by document-specific findings.

Tamsin Roe and Leo Marr certify that this sealed exercise memorandum contains only the six inert labels and abstract litigation analysis. It offers no instructions, technical values, contacts, or live information. The filing was served through the synthetic docket on Corin Pell on October 6, 2025.

The requested judgment can be entered without disclosing a controlled label publicly and without ordering release of any relationship already found protected. It requires DOE to carry the statutory burden on an adequate and reviewable record.